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Indian Penal Code

MCQs

Booklet

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1. **The term criminal conspiracy as per IPC means when two or more persons agree to do or cause to do_____**
 - a. An illegal act
 - b. An act which is not legal by illegal means
 - c. An act which is not illegal by illegal means
 - d. Either a or b or c
 - e. Either a or c

2. **The punishments to which offenders are liable under the provisions of the IPC are_____**
 - a. Imprisonment for life
 - b. Rigorous imprisonment
 - c. Foreclosure of property
 - d. Both a & b
 - e. All a b & c

3. **The Court may order that the offender shall be kept in solitary confinement for any portion of the imprisonment to which he is sentenced, not exceeding three months in the whole, according to the following scale_____**
 - a. A time not exceeding one month if the term of imprisonment shall not exceed three months
 - b. A time not exceeding two months if the term of imprisonment shall not exceed six months and shall not exceed one year
 - c. A time not exceeding three months if the term of imprisonment shall exceed one year
 - d. All a b & c
 - e. Both a & b

4. **Anything for conveyance by water of human beings or property is?**
- a. vessel
 - b. clock
 - c. cloak
 - d. steamer
 - e. chattel
5. **When is criminal conspiracy said to be done by a person?**
- a. Two or more persons agree to do, or cause to be done, an illegal act, or an act which is not illegal by illegal means
 - b. Two or more persons agree to do, or cause to be done, an illegal act, and an act which is not illegal by illegal means
 - c. When a person instigates any person to do that thing which is not illegal by illegal means
 - d. Two or more persons agree to do, or cause to be done, an illegal act, or an act which is not legal by illegal means
 - e. Two or more persons instigates any person to do that thing which is not illegal by illegal means.
6. **When is a person said to abet the doing of a thing?**
- a) Instigates any person to do that thing
 - b) An act which is not illegal by illegal means
 - c) Intentionally aids, by any act or illegal omission, the doing of a thing
 - d) Either a b or c
 - e) Either a or c

7. **Whenever a property is in possession of _____ on account of a person, it is deemed to be in his possession as per IPC.**
- a. wife
 - b. clerk
 - c. servant
 - d. clerk or servant
 - e. wife, clerk or servant.
8. **What is a valuable security as per IPC?**
- a. a document whereby any legal right is created
 - b. a document whereby any legal right is extended
 - c. a document whereby any legal right is extinguished
 - d. none of the above only a document which purports to be a document whereby any legal right is extended
 - e. a document which is or purports to be a document whereby any legal right is created, extended, transferred, restricted, extinguished.
9. **Whoever dishonestly misappropriates or converts to his own use any movable property, shall be _____**
- a. Punished with imprisonment of either description for a term which may extend to two years
 - b. Punished with imprisonment of either description for a term which may extend to two years, or with fine
 - c. Punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both
 - d. Punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both
 - e. Punished with imprisonment of either description for a term which may extend to three years, or with fine.

10 When is theft a robbery?

- a) When an offender voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, and fear of instant death and of instant hurt, and of instant wrongful restraint
- b) When an offender voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint
- c) When an offender puts person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and induces the person so put in fear then and there to deliver up the thing
- d) When an offender puts person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person and induces the person so put in fear then and there to deliver up the thing
- e) Either c or b

11. What is dacoity?

- a. When five or more persons conjointly commit or attempt to commit a robbery
- b. When the whole number of persons conjointly committing or attempting to commit a robbery
- c. When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding
- d. When five or more persons conjointly commit or attempt to commit a robbery, and where the whole number of persons conjointly committing or attempting to commit a robbery, or persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding
- e. None of the above.

12. What are the essential elements that constitute extortion?

- a. Intentionally puts any person in fear of any injury
- b. Intentionally putting any person in fear of any injury to that person, or to any other
- c. Dishonestly inducing a person put in fear to deliver to any person any property, or valuable security

- d. All a b & c
- e. Both b & c

13. **What is the punishment for mischief?**

- a. Imprisonment of either description for a term which may extend to three months,
- b. Imprisonment of either description for a term which may extend to three years, or with fine, or with both
- c. Imprisonment of either description for a term which may extend to two months, or with fine
- d. Imprisonment of either description for a term which may extend to three months, or with fine, or with both
- e. Imprisonment of either description for a term which may extend to five months, or with fine, or with both

14. **Whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits_____**

- a. Mischief
- b. Dacoity
- c. Robbery
- d. Extortion
- e. Either b or c

15. **As per IPC, the pronoun “he” used anywhere in the code denotes:**

- A. male
- B. female.
- C. person
- D. any person, male or female

E. any person

16. **The definition of movable property under IPC excludes_____**

- a. Land
- b. Things attached to the earth or permanently fastened to anything which is attached to the earth
- c. Land and things attached to the earth or permanently fastened to anything which is attached to the earth
- d. Things permanently fastened to anything which is attached to the earth
- e. Either a or b

17. **When a person habitually deals in stolen property intentionally, the highest form of punishment that can be awarded is:**

- a. imprisonment for life
- b. death
- c. imprisonment for 10 years
- d. imprisonment for 7 years
- e. a heavy fine

18. **Things done in private defence _____.**

- a. Is an offence
- b. Is not an offence
- c. May be an offence
- d. Partly be an offence
- e. May be an offence at the discretion of the Court.

19. What are the acts against which there is no right of private defence?

- a. In cases in which there is time to have recourse to protection of the public authorities
- b. Act which does not reasonably cause the apprehension of death or of grievous hurt
- c. Act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith
- d. Act which may not reasonably cause the apprehension of death and of grievous hurt if done, or attempted to be done, by the direction of a public in good faith
- e. Both a & c.

20. Which section of the IPC deals with limit of solitary confinement?

- a. Section 7
- b. Section 17
- c. Section 34
- d. Section 54
- e. Section 74

21. An abettor means a _____

- a. Person abets the commission of an offence with the intention or knowledge of that
- b. Person abets an offence, who abets either the commission of an offence, or an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor
- c. Person who abets either the commission of an offence, and an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor
- d. Person who abets the commission of an offence, or an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor
- e. None of the above

22. Which of the following is correct with respect to sedition _____

- a. Whosoever, by words brings into hatred and contempt, and excites and attempts to excite disaffection towards, the Government
- b. Whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, the Government established by law in India
- c. Be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine
- d. Both b & c
- e. All a b & c

23. If a public servant allows a prisoner of war to escape _____.

- a. he is punishable under Sedition
- b. he is punishable with waging war against government
- c. he is punishable for design of waging war
- d. he is punishable with criminal conspiracy
- e. he is punishable under a distinct offence for the same.

24. Right to private defence of body and property is subjected to:

- a. exceptions under S. 85
- b. reasonable restrictions
- c. restrictions
- d. restrictions contained in S. 99
- e. Criminal intimidation.

25. **S. 96 of IPC defines private defence and starts with the words_____**

- a. Nothing is a defence..
- b. Everything is a defence...
- c. Nothing is an offence...
- d. Everything is an offence...
- e. An offence is ...

26. **The definition of offence is:**

- a. provided separately in CrPC
- b. provided in each statute separately
- c. provided in IPC
- d. not provided in IPC
- e. defined in Special laws and CrPC

27. **Which chapter of the IPC deals with Jurisdiction of IPC?**

- a. Chapter I
- b. Chapter X
- c. Chapter XVI
- d. Chapter XVII
- e. Chapter XXV

28. **Attempt to commit robbery is punishable_____.**

- a. separately
- b. under S. 511
- c. under the offence of robbery only
- d. under the offence of dacoity only

- e. only once if committed twice.

29. Attempt to commit robbery is punishable with:

- A. simple imprisonment
- B. imprisonment
- C. rigorous imprisonment
- D. fine only
- E. simple imprisonment and fine

30. The highest form of punishment for “Dacoity with murder” is ?

- a. death
- b. imprisonment for life
- c. imprisonment for 20 years
- d. imprisonment till natural death
- e. imprisonment till 10 years

31. Wrongful gain means

- a) gain by lawful means of property to which the person gaining is not legally entitled
- b) gain by unlawful means of property to which the person gaining is not legally entitled
- c) gain by unlawful means of property to which the person gaining is legally entitled
- d) gain by lawful means of property to which the person gaining is legally entitled
- e) All of the above

32. In case of an offence punishable with fine only, imprisonment for non-payment of fine

- a) Has to be rigorous
- b) Has to be simple

- c) Can be rigorous or simple
- d) Can be partly rigorous and partly simple
- e) Does not exist

33. A meets D on high road, shows him a revolver and demands D's purse. D in consequence surrenders his purse. The offence committed by A is

- a) Dacoity
- b) Extortion
- c) Robbery
- d) Theft
- e) Criminal Misappropriation

34. How many minimum persons are needed to call robbery a dacoity?

- a) Two
- b) Three
- c) Five
- d) Seven
- e) Eleven

35. Common intention under Section 34 implies

- a) Similar intention
- b) Common motive
- c) Common object
- d) Pre-arranged planning
- e) All of the above

36. **In calculating fractions of terms of Punishment, the imprisonment for life is considered equal to**
- a) Imprisonment for ten years
 - b) Imprisonment for fourteen years
 - c) Imprisonment for eighteen years
 - d) Imprisonment for twenty years
 - e) Imprisonment for thirty years
37. **The maxim “de minimum non curat lex” is related to which of the following Sections of IPC?**
- a) Section 95
 - b) Section 89
 - c) Section 46
 - d) Section 111
 - e) Section 93
38. **A, an officer of a court of justice, being ordered by that court to arrest Y, and after due enquiry, believing Z to be Y arrests Z. A is guilty of**
- a) Wrongful confinement
 - b) No offence
 - c) Criminal negligence
 - d) Wrongful restraint
 - e) Illegal arrest
39. **‘Doli incapax’ in criminal law describes the liability of**
- a) An insane person
 - b) A child below seven years of age

- c) A child below twelve years of age
- d) A person under the influence of drugs
- e) A person under the influence of intoxicants

40. **The right of private defence of body is**

- I. Not available against unsound person
 - II. Not available against a child
 - III. Available against any person
 - IV. Available to all, irrespective of age and capacity
 - V. Available only to adults
- a) I and II
 - b) III and IV
 - c) III and V
 - d) I, II and IV
 - e) I, II and V

41. **The offence of abetment is committed by**

- a) Aiding
- b) Conspiring
- c) Instigating
- d) Both a and b
- e) All a, b and c

42. **A instigates B to murder C. B stabbed C but C recovers from the wound**

- a) A is guilty of abetment to commit murder
- b) A is guilty of abetment to commit grievous hurt

- c) A is guilty of attempt to murder
 - d) A is not guilty as desired result is not obtained
 - e) None of the above
43. **The abetment of an abetment is an offence. It can be deduced from Section IPC**
- a) 107
 - b) 108
 - c) 109
 - d) 110
 - e) 111
44. **When a person with intent to cause damage to other person causes destruction of property, he is said to have committed**
- a) Mischief
 - b) Rioting
 - c) Robbery
 - d) Nuisance
 - e) Theft
45. **When an Act is abetted and a different act is done**
- a) the abettor is liable for the act abetted
 - b) the abettor is liable for the act done
 - c) the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it
 - d) the abettor is not liable
 - e) None of the above

46. **B abets the commission of a robbery by A, a police-officer, whose duty it is to prevent that offence. The robbery be not committed.**

- a) B is liable to the longest term of imprisonment provided for the offence of robbery, and also to fine.
- b) B is liable to one-half of the longest term of imprisonment provided for the offence of robbery
- c) B is not liable
- d) B is liable to one-half of the longest term of imprisonment provided for the offence of robbery, and also to fine.
- e) B is liable to the longest term of imprisonment provided for the offence of robbery

47. **“Meeting of minds” is an essential element of this offence**

- a) Section 107
- b) Section 120A
- c) Section 133
- d) Section 221
- e) Section 121

48. **For criminal conspiracy, there must be an agreement between**

- a) At least 2 persons
- b) At least 3 persons
- c) At least 5 persons
- d) At least 7 persons
- e) At least 9 persons

49. Which of the following is an essential ingredient of sedition?

- a) Dishonest intention
- b) Words spoken must cause public disorder
- c) Words spoken must cause public disorder by acts of violence
- d) Words spoken or written must be capable of exciting disaffection towards the government
- e) Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means.

50. Match List I and List II and select correct answer with respect to IPC

List I

- A. Section 120A
- B. Section 121A
- C. Section 124A
- D. Section 108A

List II

- 1. Sedition
- 2. Abetment of offence outside India
- 3. Criminal Conspiracy
- 4. Conspiracy for waging war

Codes : A B C D

- a) 2 1 4 3
- b) 2 4 1 3
- c) 4 3 1 2
- d) 3 4 1 2
- e) 3 1 4 2

51. Punishment for non-treatment of victim is provided under

- a) Section 166
- b) Section 166A
- c) Section 166B

- d) Section 167
- e) Section 170.

52. Which one of the following is not correct, related to offence of theft?

- a) Property must be moveable
- b) Property must be removed out of the possession of the owner of property
- c) Property should have been removed for taking it away
- d) Property should be removed dishonestly
- e) All are correct

53. A cuts down a tree on B's land with the intention of dishonestly taking the tree out of B's possession, without B's consent. A has committed which offence?

- a) Extortion
- b) Dacoity
- c) Theft
- d) Criminal breach of trust
- e) Criminal misappropriation of property.

54. A finds a beautiful ring on the high road. By taking it, he commits

- a) Theft
- b) Criminal misappropriation
- c) No offence
- d) Criminal breach of trust
- e) Cheating

55. **“Any person liable, by any Indian law to be tried for an offence committed beyond India shall be dealt with according to the provisions of this Code for any act committed beyond India in the same manner as if such act had been committed within India.” This is incorporated under which section of the Indian Penal Code?**

- A) s. 3
- B) s. 4
- C) s. 66 of IT Act and S. 3 of IPC
- D) both S. 3 and 4
- E) not incorporated under Indian Penal Code.

56. **Aman a citizen of India has committed a murder in Uganda, he can be tried for the offence of Murder in?**

- A) Uganda
- B) India
- C) both Uganda and India
- D) Uganda and the place/ country to which deceased belongs
- E) tried as per the general principles of international law.

57. **Who amongst the following cannot be recognized as “public servants” as per Indian Penal Code?**

- A) an arbitrator
- B) a member of panchayat
- C) any officer of military commissioned or not commissioned
- D) Every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;
- E) a judge

58. Which of the following is no more a recognized form of punishment in India as per IPC?

- A) Transportation
- B) Imprisonment with hard labour
- C) Solitary confinement
- D) Transportation and Solitary confinement.
- E) rigorous imprisonment

59. An imprisonment for life shall be reckoned as equivalent to imprisonment for:

- A) 20 years
- B) 30 years
- C) 40 years
- D) 60 years
- E) 80 years

60. What is the amount of fine which can be imposed as per IPC, in case no expressed sum is mentioned?

- A. Not exceed one lakh rupees
- B. not exceed 5 lakh rupees
- C. not exceed 10 lakh rupees
- D. not exceed 2 lakh rupees
- E. can be unlimited

61. A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law.

- A. A has committed an offence
- B. A has still committed an offence

- C. A has committed an encounter
- D. A has committed no offence
- E. A has exercised the right of private defence

62. Which of the following is a necessary or are necessary ingredients to constitute accident as a defence under the IPC?

- A. Nothing is an offence which is done by accident or misfortune
- B. nothing is an offence done without any criminal intention or knowledge in the doing of a lawful act
- C. nothing is an offence done without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.
- D. All of the above.
- E. None of the above

63. Whether intoxication is a valid defence under IPC?

- A. No
- B. Only if taken voluntarily
- C. Only if taken against the will of other people or victim
- D. Only. If administered without the knowledge or against the will of intoxicated person.
- E. a valid defence in determining guilt, but cannot reduce term of punishment.

64. If Sheela commits an assault followed by attempt to murder of Neha in a bar after consuming intoxicating substances, what will be the charge on her? Or will she get defence of intoxication?

- A. Sheela is subjected to defence under S. 86 of IPC.
- B. Sheela has consumed intoxicating substances in the bar therefore she will not be charged and is subjected to General defences.
- C. Sheela will be tried due to involuntary intoxication.

D. Sheela will be charged unless she was administered the intoxicating substance against her will.

E. Sheela will be charged for voluntary intoxication.

65. A, a surgeon, knowing that a particular operation is likely to cause the death of Z, who suffers under the painful complaint, but not intending to cause Z's death, and intending, in good faith, Z's benefit, performs that operation on Z, with Z's consent.

A. A has committed no offence.

B. A has committed an offence

C. A has committed no offence as per S. 88 of IPC

D. A has committed no offence as per S. 86 of IPC

E. A has committed an offence as per S.88 of IPC

66. Act of guardian giving consent on behalf of a child for his benefit in good faith below _____ years is _____:

A. 12 years, considered as a valid defence

B. 7 years, considered as a valid defence

C. 10 years, considered as a justification in law but not as a valid defence

D. 12 years, considered as a justification in law but not a valid defence.

E. 18 years, considered as a valid defence

67. As discussed under General defences in IPC, which of the following is not recognized as a valid consent under any section IPC?

A. consent given under fear

B. consent given under misconception of fact

C. consent under fear or by insane person

D. consent given under fear, misconception of fact or by insane person.

E. consent given under misconception of fear and fact

68. Z is carried off by a tiger. A fires at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's ball gives Z a mortal wound

- A. A has committed no offence.
- B. A has committed an offence of culpable homicide
- C. A has committed an offence of murder
- D. A has committed an offence as there was no valid consent.
- E. A has committed an offence if there was a valid consent.

69. Which of the following offences is not covered by the general defence mentioned under S. 94 that is act compelled by threats of IPC?

- A. Murder
- B. Murder and offences against the State
- C. Murder and Offences against the State punishable by death
- D. no such offence is exempted from S. 94
- E. Murder and Culpable homicide

70. Right to private defence should be in proportion with:

- A. harm inflicted
- B. harm inflicted and not more than necessity
- C. defence required
- D. apprehension of defence
- E. the type of offence

71. Which of the following constitute a valid right to private defence?

- A. right to private defence for own body
- B. right to private defence for movable property and own body

- C. right to private defence for movable, immovable property and own body
- D. right to private defence for immovable property and own body.
- E. right to defence of private parts of the body

72. Which of the following is not subjected to causing of death of person in private defence?

- A. An assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;
- B. An assault with the intention of committing rape;
- C. An assault with the intention of gratifying unnatural lust;
- D. An assault as may reasonably cause the apprehension that hurt will be the consequence of such assault.
- E. An assault with the intention of kidnapping or abducting;

73. Right to private defence commences when _____ and continues till _____.

- A. reasonable apprehension of danger arises, offence is committed
- B. reasonable apprehension of danger persists for some period of time, offence is committed
- C. reasonable apprehension of danger persists for some period of time, such apprehension of danger continues.
- D. reasonable apprehension of danger arises, such apprehension of danger continues.
- E. offence is committed, filing of FIR

74. When the right to private defence of property extends to causing of death?

- A. in no case
- B. Robbery, House breaking
- C. Robbery, House breaking by night
- D. Robbery, House breaking by night, Mischief by fire on any building used as a custody of any

property

E. when there is apprehension of grievous hurt

75. If right to private defence is subjected to risk of harm to innocent person_____?

A. risk cannot be taken

B. right to private defence not available by taking risk of innocent persons' life

C. right to private defence available by taking risk of innocent persons' life if it is against a deadly assault.

D. risk of innocent persons' life if limited in nature can be taken and right to private defence is available in a limited manner.

E. risk shall be undergone if it is confirmed that the person exercising right to private defence shall die as a consequence

76. A instigates B to murder C. B refuses to do so. In this case which of the following is true statement?

A. A is not guilty of abetting B

B. A is guilty of abetting B

C. A is guilty of abetting B but not fully

D. A is guilty of assault.

E. A is guilty of attempt

77. Amit with a guilty intention, abets a child sonu to commit murder of balbir. Which of the following is true in above case?

A. Amit is guilty of murder

B. Sonu is guilty of murder

C. Amit is guilty of abetment.

D. Amit and Sonu both are not guilty of any offence.

E. Amit is guilty of murder and sonu is guilty of abetment.

78. Which of the following punishment is not for waging war against the government of India?

- A. death
- B. death and transportation
- C. transportation
- D. death, imprisonment and fine
- E. imprisonment of any type and transportation

79. Preparation of Waging war against the government of India is punishable with _____

- A. imprisonment for life
- B. imprisonment not exceeding 10 years
- C. imprisonment for life or not exceeding 10 years and fine
- D. imprisonment for life or not exceeding 10 years or fine or both.
- E. imprisonment for remainder of the person's natural life.

80. An assault on the President is _____

- A. punishable with imprisonment up to 7 years and fine if with intent to restrain exercise of any lawful power.
- B. punishable with imprisonment up to 10 years and fine if with intent to restrain exercise of any lawful power.
- C. punishable with imprisonment up to 3 years and fine if with intent to restrain exercise of any lawful power.
- D. punishable with same punishment as waging war against the government of India.
- E. punishable with same punishment as for assault on any person in India.

81. Sedition is an offence if anyone expresses disaffection towards the Government established by law in India by way of-

- A. words
- B. words- spoken or written, visible representation
- C. words- spoken or written, visible representation or otherwise
- D. signs or words- spoken or written, visible representation or otherwise
- E. words spoken or written

82. Which of the following is an offence against State?

- A. unlawful assembly
- B. Affray
- C. rioting
- D. sedition
- E. continuing as a member of unlawful assembly

Ans. D.

83. When a public servant frames an incorrect document intentionally_____.

- A. he commits breach of his duty
- B. he commits default
- C. he commits a separate offence under S. 167 if with intention to cause injury
- D. he commits a separate offence under S. 167 irrespective of intention to cause injury
- E. no separate offence caused.

84. When a Public servant translates a document incorrectly with the intent to cause injury to some person, he is punishable with_____

- A. punishable with fine

- B. punishable for simple imprisonment of 6 months
- C. punishable with imprisonment upto 3 years or fine or both
- D. punishable for cheating
- E. not punishable.

85. If a Public servant engages in trade unlawfully?

- A. it is not punishable
- B. punishable with imprisonment upto 10 years
- C. punishable with imprisonment upto 5 years
- D. punishable with imprisonment upto 7 years
- E. punishable with imprisonment upto 1 year

86. Prajak wears the badge of police sub inspector and enters the house of his neighbours for search. Prajak is liable for punishment _____?

- A. Imprisonment upto 3 months
- B. Imprisonment upto 6 months
- C. imprisonment upto 12 months and fine
- D. imprisonment upto 6 months and fine
- E. imprisonment upto 3 months or fine or both.

87. A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court of Justice, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to Z. In this case:

- A. A has not committed any actual injury to other person by disobedience therefore he is not liable to punishment.
- B. A has committed an offence of perjury
- C. A has committed the offence defined in S. 166 of IPC.
- D. A has not committed any offence.

E. A has committed a tort but not an offence

88. Belonging to a gang of thieves is punishable?

- A. no
- B. punishable with simple imprisonment of 1 year
- C. punishable with simple imprisonment of 3 years
- D. punishable with rigorous imprisonment which may extend to 1 year.
- E. punishable with rigorous imprisonment which may extend to 7 years

89. Which of the following is a Stolen property?

- A. property which has been transferred by theft
- B. property which has been transferred by extortion
- C. property which has been subjected to criminal misappropriation
- D. A and B
- E. A, B and C

90. Dishonestly using someone's property and converting it to own use is:

- A. Criminal breach of trust
- B. Criminal misappropriation of property
- C. receiving stolen property
- D. both A and B
- E. A, B or C

91. Which of the following is not an ingredient of criminal trespass?

- A. entering into property
- B. intention to insult

- C. entering into property in possession of another
- D. entering into property in possession of another and remain there
- E. entering into property of another for shelter without any intention to insult, annoy or intimidate the person in possession, or intention to commit an offence

92. Theft in dwelling house is punishable separately?

- A. yes, under S. 349
- B. yes, under S. 380
- C. yes, under S. 383
- D. yes, under S. 378
- E. not punishable separately

93. If Suyog commits an offence in a house by breaking the window and entering into the house during 3.00 am, he commits the offence of?

- A. House breaking
- B. House breaking by night
- C. House trespass
- D. Lurking House trespass
- E. Dacoity

94. A voluntarily burns the Power of attorney belonging to Z intending to cause wrongful loss to Z in front of Z. A has committed?

- A. Extortion
- B. Robbery
- C. Mischief
- D. Cheating
- E. Nuisance

95. If a servant commits criminal breach of trust, he is punishable with:

- A. imprisonment upto 7 years and fine
- B. imprisonment upto 5 years and fine
- C. imprisonment upto 3 years and fine
- D. imprisonment upto 2 years and fine
- E. imprisonment upto 10 years and fine

96. Which section of IPC defines Defamation?

- A. 499
- B. 500
- C. 501
- D. 502
- E. 504

97. Arnab draws a picture of Rechal running away with Yogita's watch, intending it to be believed that Rechal stole Yogita's watch. This is:

- A. Defamation
- B. Annoyance
- C. insult
- D. assault
- E. mayhem

98. As per s. 511 of IPC, if a person attempts or does any act towards attempting to commit an offence punishable with imprisonment for life or other imprisonment, shall be punishable with imprisonment:

- A. imprisonment upto 7 years and/ or fine
- B. imprisonment upto 7 years and fine

- C. imprisonment upto 7 years or fine
- D. imprisonment for remainder of a person's natural life
- E. for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment and/ or fine

99. Attempt to commit robbery is punishable with:

- A. with rigorous imprisonment for a term which may extend to 7 years, and shall also be liable to fine.
- B. with simple imprisonment for a term which may extend to 7 years, and shall also be liable to fine.
- C. with rigorous imprisonment for a term which may extend to 3 years, and shall also be liable to fine.
- D. with simple imprisonment for a term which may extend to 3 years, and shall also be liable to fine.
- E. half of the term of imprisonment as mentioned under S. 511 of IPC.

100. Which of the following constitutes Cheating as per S. 420 of IPC?

- A. Cheating and inducing a person
- B. Cheating and inducing a person to deliver any property to any person
- C. Inducing someone to destroy or alter any valuable security in whole or in parts
- D. A and B
- E. A, B and C.

Answer Key

1. Ans. e. Either a or c, Explanation: Section 120A. Definition of criminal conspiracy: When two or more persons agree to do, or cause to be done, (1) an illegal act, or (2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy: Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

2. Ans. d. Both a & b, Explanation: Section 53 Punishments: The punishments to which offenders are liable under the provisions of this Code are— Death; Imprisonment for life; Imprisonment, which is of two descriptions, namely: — (1) Rigorous, that is, with hard labour; (2) Simple; Forfeiture of property; Fine.

3. Ans. c. A time not exceeding three months if the term of imprisonment shall exceed one year, Explanation: Section 73. Solitary confinement: Whenever any person is convicted of an offence for which under this Code the Court has power to sentence him to rigorous imprisonment, the Court may, by its sentence, order that the offender shall be kept in solitary confinement for any portion or portions of the imprisonment to which he is sentenced, not exceeding three months in the whole, according to the following scale, that is to say— a time not exceeding one month if the term of imprisonment shall not exceed six months; a time not exceeding two months if the term of imprisonment shall exceed six months and shall not exceed one year; a time not exceeding three months if the term of imprisonment shall exceed one year.

4. Ans. a.

S. 48. "Vessel"

The word "vessel" denotes anything made for the conveyance by water of human beings or of property.

5. Ans. a. Two or more persons agree to do, or cause to be done, an illegal act, or an act which is not illegal by illegal means, Explanation: Section 120A. Definition of criminal conspiracy: When two or more persons agree to do, or cause to be done, (1) an illegal act, or (2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy: Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

6. Ans. e. Either a or c, Explanation: Section 107. Abetment of a thing: A person abets the doing of a thing, who—Instigates any person to do that thing; or engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes

place in pursuance of that conspiracy, and in order to the doing of that thing; or Intentionally aids, by any act or illegal omission, the doing of that thing.

7. Ans. e.

S. 27. Property in possession of wife, clerk or servant

When property is in the possession of a person's wife, clerk or servant, on account of that person, it is in that person's possession within the meaning of this Code.

8. Ans. e.

S. 30. "Valuable security"

The words "valuable security" denote a document which is, or purports to be, a document whereby any legal right is created, extended, transferred, restricted, extinguished or released, or where by any person acknowledges that he lies under legal liability, or has not a certain legal right.

9. Ans. c. Punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both, Explanation: Section 403. Dishonest misappropriation of property: Whoever dishonestly misappropriates or converts to his own use any movable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

10. Ans. b. When an offender voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint, Explanation: Section 390. Robbery: When theft is robbery: Theft is "robbery" if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

11. Ans. d. When five or more persons conjointly commit or attempt to commit a robbery, and where the whole number of persons conjointly committing or attempting to commit a robbery, or persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, Explanation: Section 391. Dacoity: When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, is said to commit "dacoity".

12. Ans. e. Both b & c, Explanation: Section 383. Extortion: Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the

person so put in fear to deliver to any person any property, or valuable security or anything signed or sealed which may be converted into a valuable security, commits "extortion".

13. Ans. d. Imprisonment of either description for a term which may extend to three months, or with fine, or with both, Explanation: Section 426. Mischief: Whoever commits mischief shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

14. Ans. a. Mischief, Explanation: Section 425. Mischief: Whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits "mischief".

15. Ans. d.

S. 8. Gender

The pronoun "he" and its derivatives are used of any person, whether male or female.

16. Ans. c. Land and things attached to the earth or permanently fastened to anything which is attached to the earth, Explanation: Section 22. "Moveable property": The words "movable property" are intended to include corporeal property of every description, except land and things attached to the earth or permanently fastened to anything which is attached to the earth.

17. Ans. a.

S. 413. Habitually dealing in stolen property

Whoever habitually receives or deals in property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

18. Ans. b. Is not an offence, Explanation: Section 96. Things done in private defence: Nothing is an offence which is done in the exercise of the right of private defence.

19. Ans. Both a & c, Explanation: Section 99. Acts against which there is no right of private defence: There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office, though that act, may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law. There is no right of private defence in cases in which there is time to have recourse to protection of the public authorities.

20. Ans. e. Section 74, Explanation: Section 74. Limit of solitary confinement: In executing a sentence of solitary confinement, such confinement shall in no case exceed fourteen days at a time, with intervals between the periods of solitary confinement of not less duration than such periods; and when the imprisonment awarded shall exceed three months, the solitary confinement shall not exceed seven days in any one month of the whole imprisonment awarded, with intervals between the periods of solitary confinement of not less duration than such periods.

21. Ans. b. Person abets an offence, who abets either the commission of an offence, or an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor, Explanation: Section 108. Abettor: A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

22. Ans. d. Both b & c, Explanation: Section 124A. Sedition: Whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, the Government established by law in India, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

23. Ans. e.

S. 128. Public servant voluntarily allowing prisoner of State or war to escape

Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, voluntarily allows such prisoner to escape from any place in which such prisoner is confined, shall be punished with 51[imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

24. Ans. d.

S. 97. Right of private defense of the body and of property

Every person has a right, subject to the restrictions contained in section 99, to defend-

First- His own body, and the body of any other person, against any offence affecting the human body;

Secondly- The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

25. Ans. c.

S. 96. Things done in private defense

Nothing is an offence which is done in the exercise of the right of private defense.

26. Ans. c.

S. 40. "Offence"

Except in the 31[Chapters] and sections mentioned in clauses 2 and 3 of this section, the word "offence" denotes a thing made punishable by this Code.

In Chapter IV, 32[Chapter VA] and in the following sections, namely, sections 33[64, 65, 66, 34[67], 71], 109, 110, 112, 114, 115, 116, 117, 187, 194, 195, 203, 211, 213, 214, 221, 222, 223, 224, 225, 327, 328, 329, 330, 331, 347, 348, 388, 389 and 445, the words "offence" denotes a thing punishable under this Code, or under any special or local law as hereinafter defined.

And in sections 141, 176, 177, 201, 202, 212, 216 and 441, the word "offence" has the same meaning when the thing punishable under the special or local law is punishable under such law with imprisonment for a term of six months or upwards, whether with or without fine.]

27. Ans. a.

Chapter I Introduction deals with Territorial and Extra-territorial jurisdiction of IPC.

28. A

S. 393. Attempt to commit robbery

29. C.

S. 393. Attempt to commit robbery

Whoever attempts to commit robbery shall be punished with *rigorous imprisonment* for a term which may extend to seven years, and shall also be liable to fine.

30. Ans. a.

S. 396. Dacoity with murder

If any one of five or more persons, who are conjointly committing dacoity, commits murder in so committing dacoity, every one of those persons shall be punished with death, or imprisonment for life, or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

31. Ans- b

Section 23 IPC

“Wrongful gain” - “Wrongful gain” is gain by unlawful means of property to which the person gaining is not legally entitled.

“Wrongful loss”- “Wrongful loss” is the loss by unlawful means of property to which the person losing it is legally entitled.

32. Ans- b

Section 67 IPC - Imprisonment for non-payment of fine, when offence punishable with fine only—
If the offence be punishable with fine only, the imprisonment which the Court imposes in default of payment of the fine shall be simple, and the term for which the Court directs the offender to be imprisoned, in default of payment of fine, shall not exceed the following scale, that is to say, for any term not exceeding two months when the amount of the fine shall not exceed fifty rupees, and for any term not exceeding four months when the amount shall not exceed one hundred rupees, and for any term not exceeding six months in any other case

33. Ans- c

Illustration b of Section 390 – Robbery

A meets Z on the high road, shows a pistol, and demands Z's purse. Z, in consequence, surrenders his purse. Here A has extorted the purse from Z by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence. A has therefore committed robbery.

34. Ans- c

Section 391 IPC -Dacoity—When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a

robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, is said to commit “dacoity”.

35. Ans- d

Section 34. Acts done by several persons in furtherance of common intention—When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone

Common Intention is known as a prearranged plan and acting in concert pursuant to the plan. It must be proved that the Criminal act was done in concert pursuant to the pre-arranged plan. It comes into being prior to the Commission of the act in point of time, yet it need not be a long gap.

36. Ans- d

Section 57 IPC - Fractions of terms of punishment—In calculating fractions of terms of punishment, imprisonment for life shall be reckoned as equivalent to imprisonment for twenty years

37. Ans- a

de minimis non curat lex means “law is not concerned with small things.” A legal doctrine by which a court refuses to consider trifling things. This is related to Section 95 of IPC.

Section 95 IPC - Act causing slight harm—Nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm.

38. Ans- b

Illustration to Section 76 - Act done by a person bound, or by mistake of fact believing himself bound, by law—Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.

(b) A, an officer of a Court of Justice, being ordered by that Court to arrest Y, and after due enquiry, believing Z to be Y, arrests Z. A has committed no offence.

39. Ans- b

Doli incapax is a Latin legal maxim meaning ‘incapable of doing any harm or incapable of committing a crime’. It is a presumption that a child is incapable of forming the necessary criminal intent for committing an offence.

The maxim is based on the following reasoning/principles:

1. A person is to be held criminally responsible only for those acts that he intends to commit.
2. A child below the age of 7 years does not have sufficient mental understanding to know the consequences of his actions and therefore lacks the criminal intention/mens rea required to hold a person guilty of an offence.
3. A child has to be protected from the rigours of the law at his tender age.

Section 82 of the Indian Penal Code, 1860 under Chapter IV relating to 'General Exceptions' provides that any act of a child under 7 years of age is not an offence, "Nothing is an offence which is done by a child under 7 years of age".

40. Ans- b

Section 97 IPC - Right of private defence of the body and of property—Every person has a right, subject to the restrictions contained in section 99, to defend—

First—His own body, and the body of any other person, against any offence affecting the human body;

Secondly—The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

41. Ans- e

Section 107 IPC - Abetment of a thing—A person abets the doing of a thing, who—

First—Instigates any person to do that thing; or

Secondly—Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or

Thirdly—Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1—A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

42. Ans- a

Section 108 IPC – Illustration b to Explanation 2

108. Abettor—A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

Explanation 1—The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

Explanation 2—To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

Illustrations

(a) A instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder.

(b) A instigates B to murder D. B in pursuance of the instigation stabs D. D recovers from the wound. A is guilty of instigating B to commit murder.

43. Ans- b

Explanation 4 Section 108 IPC

Explanation 4—The abetment of an offence being an offence, the abetment of such an abetment is also an offence.

Illustration

A instigates B to instigate C to murder Z. B accordingly instigates C to murder Z, and C commits that offence in consequence of B's instigation. B is liable to be punished for his offence with the punishment for murder; and, as A instigated B to commit the offence, A is also liable to the same punishment.

44. Ans- a

Section 425 - Mischief—Whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits "mischief".

45. Ans- c

Section 111 IPC - Liability of abettor when one act abetted and different act done.—When an Act is abetted and a different act is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it:

Provided the act done was a probable consequence of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy which constituted the abetment.

46. Ans- d

Section 116 IPC

Abetment of offence punishable with imprisonment—if offence be not committed—Whoever abets an offence punishable with imprisonment shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of any description provided for that offence for a term which may extend to one-fourth part of the longest term provided for that offence; or with such fine as is provided for that offence, or with both;

if abettor or person abetted be a public servant whose duty it is to prevent offence—and if the abettor or the person abetted is a public servant, whose duty it is to prevent the commission of such offence, the abettor shall be punished with imprisonment of any description provided for that offence, for a term which may extend to one-half of the longest term provided for that offence, or with such fine as is provided for the offence, or with both.

47. Ans- b

Section 120A IPC

Definition of criminal conspiracy—When two or more persons agree to do, or cause to be done—

(1) an illegal act, or

(2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

Explanation—It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object.

A criminal conspiracy not only consists of the agreement or meeting of intention or minds between two or more than two persons but an actual commission of an unlawful act by unlawful means.

48. Ans- a

Section 120A IPC

Definition of criminal conspiracy—When two or more persons agree to do, or cause to be done—

(1) an illegal act, or

(2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

49. Ans- d

Section 124A IPC – Sedition

Whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, the Government established by law in India, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

Explanation 1—The expression “disaffection” includes disloyalty and all feelings of enmity.

Explanation 2—Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

Explanation 3—Comments expressing disapprobation of the administrative or other action of the Government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

50. Ans- d

108A. Abetment in Indian of offences outside India

120A. Definition of criminal conspiracy

121A. Conspiracy to commit offences punishable by section 121

121. Waging, or attempting to wage war, or abetting waging of war, against the Government of India

124A. Sedition.

51. Ans- c

Section 166B - Punishment for non-treatment of victim—Whoever, being in charge of a hospital, public or private, whether run by the Central Government, the State Government, local bodies or any other person, contravenes the provisions of section 357C of the Code of Criminal Procedure, 1973, shall be punished with imprisonment for a term which may extend to one year or with fine or with both.

52. Ans- b

Section 378 defines theft

Theft—Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Explanation 1—A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2—A moving effected by the same act which effects the severance may be a theft.

Explanation 3—A person is said to cause a thing to move by removing an obstacle which prevented it from moving or by separating it from any other thing, as well as by actually moving it.

Explanation 4—A person, who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.

Explanation 5—The consent mentioned in the definition may be express or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.

Option b is incorrect because in theft; property can be removed out of the possession of any person and not only out of the possession of owner of property. The offence of theft is against possession and not ownership.

53. Ans- c

Illustration a of section 378 - A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.

54. Ans- c

Section 403 IPC - Dishonest misappropriation of property—Whoever dishonestly misappropriates or converts to his own use any movable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Explanation 2—A person who finds property not in the possession of any other person, and takes such property for the purpose of protecting it for, or of restoring it to, the owner, does not take or misappropriate it dishonestly, and is not guilty of an offence; but he is guilty of the offence above defined, if he appropriates it to his own use, when he knows or has the means of discovering the owner, or before he has used reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it.

What are reasonable means or what is a reasonable time in such a case, is a question of fact. It is not necessary that the finder should know who is the owner of the property, or that any particular person is the owner of it; it is sufficient if, at the time of appropriating it, he does not believe it to be his own property, or in good faith believe that the real owner cannot be found.

55.

Answer: A.

S. 3. Punishment of offences committed beyond but which by law may be tried within India.

Any person liable, by any Indian law to be tried for an offence committed beyond India shall be dealt with according to the provisions of this Code for any act committed beyond India in the same manner as if such act had been committed within India.

56. Answer: C.

As per the territorial jurisdiction, Aman can be tried in Uganda as the offence is committed in Uganda and as Aman is a citizen of India he can be tried as IPC in India.

S. 4 deals with Extra territorial operation of IPC.

S. 4. Extension of Code to extra-territorial offences

The provisions of this Code apply also to any offence committed by-

(1) any citizen of India in any place without and beyond India ;

(2) any person on any ship or aircraft registered in India wherever it may be.

Explanation- In this section the word "offence" includes every act committed outside India which, if committed in India, would be punishable under this Code.

Illustration

A, who is a citizen of India, commits a murder in Uganda. He can be tried and convicted of murder in any place in India in which he may be found.

57. Answer: C. only a commissioned officer is a public servant

As per Indian Penal Code,

S. 21. "Public Servant"

The words "public servant" denote a person falling under any of the descriptions hereinafter following; namely:-

Second- Every Commissioned Officer in the Military, Naval or Air Forces of India;

Third- Every Judge including any person empowered by law to discharge, whether by himself or as a member of any body of persons, any adjudicatory functions;

Fourth- Every officer of a Court of Justice (including a liquidator, receiver or commissioner whose duty it is as such officer, to investigate or report on any matter of law or fact, or to make, authenticate, or keep any document, or to take charge or dispose of any property, or to execute any judicial process, or to administer any oath, or to interpret, or to preserve order in the Court, and every person specially authorized by a Court of Justice to perform any of such duties;

Fifth. - Every juryman, assessor, or member of a panchayat assisting a Court of Justice or public servant;

Sixth- Every arbitrator or other person to whom any cause or matter has been referred for decision or report by any Court of Justice, or by any other competent public authority;

Seventh- Every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;

58. Answer: A.

Transportation is removed from IPC by Amendment act of 1955.

Transportation is construed as to amount to imprisonment for life everywhere in IPC after this amendment.

59. Answer: A.

S. 57. Fractions of terms of punishment. —In calculating fractions of terms of punishment, imprisonment for life shall be reckoned as equivalent to imprisonment for twenty years.

60. Answer: E.

S. 63. Amount of fine. —Where no sum is expressed to which a fine may extend, the amount of fine to which the offender is liable is unlimited, but shall not be excessive.

61. Ans. D.

As per S. 76 of IPC (a) A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. A has committed no offence.

62. Ans. D.

S. 80. Accident in doing a lawful act. —Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.

63. Ans. D.

As per S. 86. Offence requiring a particular intent or knowledge committed by one who is intoxicated.—In cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will.

64. Ans. D.

As per S. 85 of IPC S. 85. Act of a person incapable of judgment by reason of intoxication caused against his will.—

Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law: provided that the thing which intoxicated him was administered to him without his knowledge or against his will.

65. Ans. C.

S. 88. Act not intended to cause death, done by consent in good faith for person's benefit.—

Nothing, which is not intended to cause death, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, or be known by the doer to be likely to cause, to any person for whose benefit it is done in good faith, and who has given a consent, whether express or implied, to suffer that harm, or to take the risk of that harm.

Illustration

A, a surgeon, knowing that a particular operation is likely to cause the death of Z, who suffers under the painful complaint, but not intending to cause Z's death, and intending, in good faith, Z's benefit, performs that operation on Z, with Z's consent. A has committed no offence.

66. Ans. A.

S. 89. Act done in good faith for benefit of child or insane person, by or by consent of guardian.— Nothing which is done in good faith for the benefit of a person under twelve years of age, or of unsound mind, by or by consent, either express or implied, of the guardian or other person having lawful charge of that person, is an offence by reason of any harm which it may cause, or be intended by the doer to cause or be known by the doer to be likely to cause to that person:

67. Ans. D.

S. 90. Consent known to be given under fear or misconception. —A consent is not such a consent as is intended by any section of this Code, if the consent is given by a person under fear of injury, or under a misconception of fact, and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception; or

Consent of insane person.—if the consent is given by a person who, from unsoundness of mind, or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or

Consent of child.—unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age.

68. Ans. A.

S. 92. Act done in good faith for benefit of a person without consent.—Nothing is an offence by reason of any harm which it may cause to a person for whose benefit it is done in good faith, even without that person's consent, if the circumstances are such that it is impossible for that person to signify consent, or if that person is incapable of giving consent, and has no guardian or other person in lawful charge of him from whom it is possible to obtain consent in time for the thing to be done with benefit

Illustration-

(b) Z is carried off by a tiger. A fires at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's ball gives Z a mortal wound. A has committed no offence.

69. Ans. C.

As per S. 94. Act to which a person is compelled by threats.—Except murder, and offences against the State punishable with death, nothing is an offence which is done by a person who is compelled to do it by threats, which, at the time of doing it, reasonably cause the apprehension that instant death to that person will otherwise be the consequence:

70. Ans. B.

S. 99. Acts against which there is no right of private defence.

Extent to which the right may be exercised.—The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.

71. Ans. C.

S. 97. Right of private defence of the body and of property.—Every person has a right, subject to the restrictions contained in section 99, to defend—

First.—His own body, and the body of any other person, against any offence affecting the human body;

Secondly.—The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

72. Ans. D.

As per S. 100. When the right of private defence of the body extends to causing death.—The right of private defence of the body extends, under the restrictions mentioned in the last preceding section, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:—

First.—Such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault;

Secondly.—Such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;

Thirdly.—An assault with the intention of committing rape;

Fourthly.—An assault with the intention of gratifying unnatural lust;

Fifthly.—An assault with the intention of kidnapping or abducting;

Sixthly.—An assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.

Seventhly.—An act of throwing or administering acid or an attempt to throw or administer acid which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such act.

73. Ans. D.

S. 102. Commencement and continuance of the right of private defence of the body.—The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence though the offence may not have been committed; and it continues as long as such apprehension of danger to the body continues.

74. Ans. D.

S. 103. When the right of private defence of property extends to causing death.—The right of private defence of property extends, under the restrictions mentioned in section 99, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:—

First.—Robbery;

Secondly.—House-breaking by night;

Thirdly.—Mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property;

Fourthly.—Theft, mischief, or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised.

75. Ans. C.

As per S. 106. Right of private defence against deadly assault when there is risk of harm to innocent person.—If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person, his right of private defence extends to the running of that risk.

76. Ans. B.

As per illustration clause of S. 108.

S.108. Abettor.—A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

Illustration appended to explanation 2

Explanation 2.—To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

77. Ans. C.

Explanation 3.—It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of the abettor, or any guilty intention or knowledge.

Illustration

- (a) A, with a guilty intention, abets a child or a lunatic to commit an act which would be an offence, if committed by a person capable by law of committing an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence.

78. Ans. C.

Transportation is no longer a form of punishment under the IPC.

79. Ans. C.

As per S. 122. Collecting arms, etc., with intention of waging war against the Government of India.—

Whoever collects men, arms or ammunition or otherwise prepares to wage war with the intention of either waging or being prepared to wage war against the Government of India, shall be punished with imprisonment for life or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

80. Ans. A.

As per S. 124. Assaulting President, Governor, etc., with intent to compel or restrain the exercise of any lawful power.—Whoever, with the intention of inducing or compelling the President of India, or Governor of any State, to exercise or refrain from exercising in any manner any any of the lawful powers of such President or Governor, assaults or wrongfully restrains, or attempts wrongfully to restrain, or overawes, by means of criminal force or the show of criminal force, or attempts so to overawe, such President or Governor, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

81. Ans. D.

S. 124A. Sedition- Whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards the Government established by law in India, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

82. Ans. D.

As per S. 124 A Sedition is an offence punishable and is an offence against the State whereas all other offences are against public tranquility.

83. Ans. C.

S.167. Public servant framing an incorrect document with intent to cause injury

Whoever, being a public servant, and being, as such public servant, charged with the preparation or translation of any document, frames or translates that document in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

84. Ans. C.

S. 167. Public servant framing an incorrect document with intent to cause injury

Whoever, being a public servant, and being, as such public servant, charged with the preparation or translation of any document, frames or translates that document in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby

cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

85. Ans. E.

S.168. Public servant unlawfully engaging in trade

Whoever, being a public servant, and being legally bound as such public servant not to engage in trade, engages in trade, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

86. Ans. E.

S. 171. Wearing garb or carrying token used by public servant with fraudulent intent

Whoever, not belonging, to a certain class of public servants, wears any garb or carries any token resembling any garb or token used by that class of public servants, with the intention that it may be believed, or with the knowledge that it is likely to be believed, that he belongs to that class of public servants, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred rupees, or with both.

87. Ans. C.

As per S. 166. Public servant disobeying law, with intent to cause injury to any person.—Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending to cause, or knowing it to be likely that he will by such disobedience, cause injury to any person, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Illustration

A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court of Justice, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to Z.

88. Ans. E

S. 401. Punishment for belonging to gang of thieves

Whoever, at any time after the passing of this Act, shall belong to any wandering or other gang of persons associated for the purpose of habitually committing theft or robbery, and not being a gang of 'thugs or dacoits, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

89. Ans. E

410. Stolen Property

Property, the possession whereof has been transferred by theft, or by extortion, or by robbery, and property which has been criminally misappropriated or in respect of which 172[***] criminal breach of trust has been committed, is designed as "stolen property", 153[whether the transfer has been made, or the misappropriation or breach of trust has been committed, within or without India. But, if such property subsequently comes into the possession of a person legally entitled to the possession thereof, it then ceases to be stolen property

90. Ans. A

405. Criminal breach of trust

Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or willfully suffers any other person so to do, commits "criminal breach of trust"..

91. Ans. E.

S. 441. Criminal trespass

Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence, is said to commit "criminal trespass".

92. B.

S. 349. Force

S. 380. Theft in dwelling house, etc

Whoever commits theft in any building, tent or vessel, which building, tent or vessel is used as a human dwelling., or used for the custody of property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

93. Ans. B.

S. 446. House-breaking by night

Whoever commits house-breaking. after sunset and before sunrise, is said to commit "house-breaking by night".

94. Ans. C

S.25. Mischief

Whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits "mischief".

Explanation 1- It is not essential to the offence of mischief that the offender should intend to cause loss or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.

Explanation 2- Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.

Illustrations

(a) A voluntarily burns a valuable security belonging to Z intending to cause wrongful loss to Z. A has committed mischief.

95. Ans. A

S. 408. Criminal breach of trust by clerk or servant

Whoever, being clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property, *shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

96. Ans. A

S. 499. Defamation

Whoever, by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter expected, to defame that person.

97. Ans. A.

As per S. 499 Illustration (c) A draws a picture of Z running away with B's watch, intending it to be believed that Z stole B's watch. This is defamation, unless it fall within one of the exceptions.

98. Ans. E.

S. 511. Punishment for attempting to commit offences punishable with imprisonment for life or other imprisonment

Whoever attempts to commit an offence punishable by this Code with imprisonment for life or imprisonment, or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Code for the punishment of such attempt, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence, or with such fine as is provided for the offence, or with both.

99. Ans. A.

As per s. 393. Attempt to commit robbery

Whoever attempts to commit robbery shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

100. Ans. E.

S. 420. Cheating and dishonestly inducing delivery of property

Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.